



NEXO
RESIDENCES
NORTH MIAMI BEACH

NEXO RESIDENCES

CONDOMINIUM ASSOCIATION



TRANSIENT RENTAL
APPLICATION

TRANSIENT RENTAL APPLICATION

For rentals of three (3) nights through three (3) months

This Transient Rental Application must be completed and approved by the Association prior to the commencement of any transient rental of the unit, in accordance with the governing documents of the Association.

UNIT #	OWNER NAME	APPLICATION DATE

GENERAL LEASING CRITERIA

- All Units other than the Town House Units may be used for Transient Rentals, with a minimum lease term of three (3) nights and with no maximum lease term. Town House Units may not be leased more than three (3) times in any twelve (12) month period or for a term of three (3) months or less. The lease of a Unit for a term of six (6) months or less is subject to a tourist development tax. County bed taxes must be remitted through the County Tourist Development Tax (TDT) and State Sales and Use Tax through the Florida Department of Revenue.
- The lease approval fee is \$20 per night for the first seven nights and \$10 for the eighth night, up to a maximum of \$150 per transient lease. The Association bills the fee to the Unit Owner separately during month-end reconciliation.

SUBMISSION CHECKLIST

- ☐ **Confirmation of ownership**, including warranty deed, HUD/closing documentation, and current owner contact information.
- ☐ **Verification that the Owner's account with the Association is in good standing**, with no delinquent assessments, outstanding fines, or unresolved violations.
- ☐ Confirmation that the Owner has **established AutoPay** for all applicable maintenance assessments and lease approval fees.
- ☐ **Proof of Condominium Unit Owner's Insurance** (HO-6) or equivalent policy that permits short-term or transient rental activity, with no exclusions for business use or rental activity. The Unit Owner must maintain the following minimum coverage:
 - Personal liability coverage of not less than \$1,000,000 per occurrence, including claims by guests, tenants, invitees, and third parties
 - Short-term rental endorsement, dedicated short-term rental policy, or comparable coverage for paying guests and rental-use damages
 - Personal property coverage for the full replacement value of the furnished Unit's contents.

Each policy must name the following as Additional Insureds, evidenced by a Certificate of Insurance and a copy of the applicable Additional Insured Endorsement:

- Nexo Residences Condominium Association, Inc.
- 13899 Biscayne Associates, LLC
- KW Property Management and Consulting, LLC

The Certificate of Insurance must also provide for a minimum of 30 days' written notice to the Association prior to cancellation, non-renewal, or material change in coverage.

- ☐ **State Vacation Rental License** through the Florida Department of Business & Professional Regulation (DBPR).
- ☐ **City Business Tax Receipt (BTR)** the local business registration.
- ☐ A fully executed, binding **Rental Management Agreement**, if a third-party rental management company is engaged to manage or facilitate the rental of the Unit. Not applicable if the Owner will self-manage the rental.
- ☐ **Designated Contact and Approved Vendor information**, including 24/7 availability for guest service, maintenance, and housekeeping, which must be displayed at all times inside the unit, provided to the guest, and provided to Association Management.
- ☐ Confirmation that the unit meets the **Minimum Rental Condition** and has been inspected prior to guest arrival. The Unit must:
 - Be clean, sanitary, and in good overall condition, with no visible damage, leaks, or significant maintenance concerns.
 - Have operational plumbing, electrical, HVAC, appliances, doors, and windows.
 - Have all required life-safety equipment in place and operational, including smoke/CO detectors and fire extinguisher(s), as applicable.
 - Be safe and suitable for occupancy, with clear and unobstructed exits and no obvious hazardous conditions.
 - If the Unit is enrolled in the AvantStay program, it must also meet all applicable AvantStay standards and requirements, including but not limited to:
 - Any changes to the appearance of the Unit must be reviewed and approved by AvantStay in advance, as unapproved changes may affect listing accuracy and Unit performance.
 - The Unit must be equipped with the designated AvantStay Homegoods package applicable to its floor plan, including all standard bath amenities and linens in accordance with AvantStay specifications. No substitutions are permitted.
- ☐ A refundable **security deposit** in the amount of **\$2,000**. The Association may apply the deposit toward any incidental charges, costs, or damages to the Common Elements and/or any unpaid lease approval fee due to the Association. The deposit must be submitted in the form of a check payable to *Nexo Residences Condominium Association, Inc.*
- ☐ **Owner orientation and acknowledgment** of compliance with the governing documents, rules, regulations, and Association policies.

TRANSIENT RENTAL APPLICATION

1. UNIT OWNER INFORMATION

UNIT OWNER 1 NAME	EMAIL ADDRESS	MOBILE PHONE	
UNIT OWNER 2 NAME (IF APPLICABLE)	EMAIL ADDRESS	MOBILE PHONE	
MAILING ADDRESS			
CITY	STATE / PROVINCE	ZIP / POSTAL CODE	COUNTRY

2. RENTAL DETAILS

UNIT NUMBER	PLANNED RENTAL START DATE	MANAGING ENTITY (CHECK ONE) ☐ AvantStay ☐ Self-Managed ☐ Other
IF A RENTAL MANAGEMENT COMPANY OTHER THAN AVANTSTAY IS USED		
COMPANY NAME	EMAIL ADDRESS	
CONTACT NAME	PHONE	

If a third-party company manages or facilitates the rental, attach the fully executed Rental Management Agreement.

3. 24/7 DESIGNATED CONTACT

FULL NAME / RENTAL MANAGEMENT COMPANY	EMAIL ADDRESS	PRIMARY PHONE	AFTER-HOURS PHONE
☐ This person is authorized to act on behalf of the Owner. ☐ I confirm the Designated Contact is available 24 hours a day, 7 days a week during the entire rental period.			

4. APPROVED VENDORS

SERVICE	PROVIDER / COMPANY	CONTACT NAME	PHONE	EMAIL
Housekeeping				
Maintenance / Service				
Guest Services				

5. MINIMUM RENTAL CONDITION

☐ I confirm the Unit meets the Minimum Rental Condition.		
DATE OF LAST INSPECTION	INSPECTED BY (NAME)	INSPECTED BY (ROLE) ☐ Owner ☐ Designated Contact

FOR ASSOCIATION USE ONLY

DATE RECEIVED	RECEIVED BY	DATE REVIEWED	REVIEWED BY
CHECKLIST COMPLETE ☐ Yes ☐ No	DECISION ☐ Approved ☐ Denied ☐ Pending		APPROVAL EFFECTIVE DATE
NOTES			

All vendors must be approved by the Association prior to being permitted on the Premises. Approval requires submission and acceptance of the current Certificate of Insurance (COI) for each vendor, demonstrating compliance with the Association's insurance requirements listed below.

Please ensure the following requirements are met:

- **General Liability**
 - Minimum coverage amount of **\$1,000,000**
 - Policy expiration date must be at least **one year from the date submitted**
 - Please clearly indicate "**X**" or "**Y**" for **Additional Insured and Subrogation Waived**
- **Workers' Compensation**
 - Minimum coverage amount of \$500,000
 - Policy expiration date must be at least **one year from the date submitted**
 - Please clearly indicate "**X**" or "**Y**" for **Subrogation Waived**
- **Certificate Holder**
 The certificate holder section must read exactly as follows:

Nexo Residences Condominium Association, Inc.
KW Property Management & Consulting, LLC
13899 Biscayne Blvd
North Miami Beach, FL 33181

Transient Rental Responsibilities

The following procedures define the respective responsibilities of the Association/Management, the Owner, and the Owner Operator for guest stays. These requirements apply to all rentals, including short-term, seasonal, and other guest occupancy arrangements permitted by the Association's governing documents and applicable law.

- **Association / Building Management (KWPMC):** The Association and its appointed management company, acting on behalf of the community and responsible for common-area operations, rule enforcement, building access systems, and Association-level communications.
- **Unit Owner:** The record unit owner, who remains ultimately responsible for their unit, guests, tenants, owner operator, and compliance with all Association requirements.
- **Owner Operator:** A rental manager, booking platform manager, host, or other party authorized by the Owner to market or operate the unit. An Owner Operator acts on the Owner's behalf and does not relieve the Owner of any responsibility or liability.

ASSOCIATION / BUILDING MANAGEMENT RESPONSIBILITIES

The Association and Management are responsible for establishing and communicating applicable rental, registration, parking, access, amenity, and community-rule requirements. The Association and Management do not make, confirm, modify, cancel, or financially administer reservations.

Guest Registration and Pre-Arrival Requirements

- Management may provide registration forms, community rules, parking requirements, amenity procedures, and other Association-level information for Owners and Owner Operators to share with Guests.
- Management may review submitted guest information for completeness and compliance and may administer Association-controlled registration, parking authorization, gate access, building access, and amenity access.
- Management may provide the Designated Contact and Approved Vendor information on file to Guests, as authorized by the Owner.
- Management may require the verification report and the license and tax evidence described in the Owner Responsibilities section.
- Acceptance of guest information by Management does not mean that the Association or Management has approved the rental arrangement or assumed responsibility for the Guest's stay.

Check-In and Access

Management and Avantstay is responsible for guest check-in registration and for providing access to the Unit. All guests must check in through the front desk; Owners and Owner Operators may not provide an alternative check-in process that bypasses the front desk. This includes:

- Providing keys, fobs, or other Unit-access credentials, and assisting Guests with Unit-entry issues, lockouts.
- Obtaining from each Guest, at check-in, a signed acknowledgement that the Guest (i) understands the Association has no ability to provide service to the Unit, (ii) agrees to look only to the Designated Contact or the Owner or its designee with respect to any matters relating to the Guest's stay and the condition of the Unit, and (iii) agrees to be bound by the provisions of the Declaration and the rules and regulations of the Association;
- Maintaining the security of Unit keys, codes, and credentials, and changing, collecting, or deactivating Unit-access credentials after each stay, as appropriate.
- Owners and Owner Operators are responsible for any luggage-storage needs of their Guests. AvantStay's luggage-storage space is intended exclusively for Guests participating in AvantStay's program and may not be used by Guests of an Owner or Owner Operator unless expressly authorized by AvantStay.

Services, Maintenance, and Guest Support

- The Association and Management are responsible for the operation and maintenance of Common Areas and Association-controlled systems, as provided in the governing documents.
- Management does not provide housekeeping, maintenance, concierge services, guest services, Unit repairs, Unit Wi-Fi or television support, or any other service offered by the Owner or Owner Operator as part of a guest stay.

Guest Conduct and Rule Compliance

- The Association and Management may enforce Association rules through notices, warnings, fines, towing requests, suspension of amenity privileges, access restrictions, or other actions permitted by the governing documents and applicable law.
- Management may contact the Owner, Owner Operator, Guest, security personnel, emergency services, or law enforcement when necessary to address safety, security, property damage, or significant rule violations.
- The Association and Management are not responsible for supervising Guests or managing the Owner's rental operation.

Billing and Financial Responsibilities

- The Association or Management may invoice the Owner for Association-related fees, fines, damage charges, replacement costs, and other amounts due under the Association's governing documents.
- Unless otherwise agreed in writing, the Association and Management do not collect rent, guest security deposits, cleaning fees, guest charges, or other rental income on behalf of an Owner or Owner Operator.
- The Association is responsible for collecting the lease approval fee and the refundable common area security deposit described in the Owner Responsibilities section, as criteria for the Unit's eligibility to be leased on a transient basis.
-

APPROVED CHECK-IN PROVIDER RESPONSIBILITIES

Check-In and Access

Upon the Association's approval of a transient rental and the applicable Guest registration, the Owner authorizes AvantStay, KW Property Management & Consulting, LLC ("KWPMC"), and their respective authorized employees, agents, contractors, and representatives (collectively, the "Authorized Parties") to coordinate and perform check-in and check-out services for approved Guests, including the issuance, collection, activation, deactivation, or recovery of keys, fobs, access credentials, parking credentials, and other access devices, as applicable.

This authorization applies only to Guests, Units, and occupancy dates that have been approved by the Association in accordance with the Association's transient-rental procedures.

If a Guest arrives without required Association approval, arrives outside the approved rental period, or otherwise does not satisfy the Association's transient-rental requirements, AvantStay may, in its reasonable discretion and subject to availability, arrange for the Guest to check in to another unit or alternative accommodation. AvantStay is not obligated to provide alternate accommodations.

Neither the Association, KWPMC, nor AvantStay assumes responsibility for the Guest's stay, the condition of the Unit, the Owner's rental agreement, rental income, refunds, Guest claims, or any service customarily provided by the Owner or Owner Operator. Their involvement in check-in, check-out, access administration, or guest relocation is administrative and operational only, and does not create a landlord-tenant relationship or an obligation to provide accommodations or guest services.

OWNER / OWNER OPERATOR RESPONSIBILITIES

Reservations and Booking Management

The Owner or Owner Operator is responsible for all reservation-related matters, including:

- Market, advertise, accept, confirm, modify, and cancel all reservations for the Unit.
- Promptly notify Management when a reservation is cancelled or modified if the change affects submitted registration, access, parking, or occupancy information.
- Ensure that no reservation is accepted for dates in which the Unit is noncompliant with Association requirements, under repair, subject to an access restriction, or otherwise unavailable for occupancy.

Guest Registration and Pre-Arrival Requirements

Before a Guest arrives, the Owner or Owner Operator must:

- Submit all required guest-registration information, forms, acknowledgements, vehicle details, pet information, and applicable fees through Grit at least 72 hours before guest arrival, and keep the information accurate and up to date if the reservation is changed or cancelled.
- Provide Guests with all applicable Association rules, including occupancy limits, quiet hours, parking requirements, trash procedures, pet restrictions, smoking restrictions, and amenity rules, and obtain any required acknowledgements;
- Provide check-in and check-out times, arrival instructions, and emergency contact information;
- Confirm that the Unit is clean, safe, furnished as represented, and ready for occupancy.

Services, Maintenance, and Guest Support Within the Unit

The Owner or Owner Operator is solely responsible for all services and conditions within the Unit, including:

- Cleaning, turnover, linens, towels, toiletries, and supplies, including deep cleaning and sanitizing following each Guest's check-out and prior to another Guest being provided access to the Unit, to the standards established from time to time by the Approved Vendors;
- Owner or Owner Operator must bring and remove their own supplies, tools, and linens from the unit, without moving equipment through the lobby or staging in corridors. Owner Operator and its vendors must be preapproved by the Association by providing compliant COI and authorization by Owner or Owner Operator (contact the Management Office), must check in daily at Receiving Office, and must enter the building through the garage entrance and service elevator;
- Furniture, appliances, fixtures, electronics, internet, television, and other Unit equipment, and Unit repairs and maintenance;
- Guest questions, complaints, and support, including emergency response for Unit-specific concerns such as plumbing, HVAC, electrical, appliance, water-leak, or access issues;
- Compliance with all applicable health, safety, and rental requirements.

Guest Conduct and Rule Compliance

The Owner or Owner Operator must ensure that all Guests comply with Association rules, posted notices, and applicable governing documents. This includes promptly addressing noise or disturbance complaints, parking violations, unauthorized occupants, pet violations, smoking violations, improper trash disposal, misuse of amenities or Common Areas, damage to the Unit, Common Areas, or Association property, and any other misconduct by Guests or their invitees.

Billing and Financial Responsibilities

The Owner or Owner Operator is solely responsible for all financial matters involving the Guest, including rental payments, security deposits, cleaning and pet fees, taxes, refunds and credits, damage claims, and reservation, payment platform, or insurance disputes.

OWNER RESPONSIBILITIES

- The Owner must maintain the Owner's account with the Association in good standing, with no delinquent assessments, outstanding fines, or unresolved violations.
- The Owner must ensure that the Unit meets the Minimum Rental Condition (as established by the Association) and has been inspected prior to guest arrival.
- The Owner must maintain Homeowner's Insurance that meets the Association's requirements.
- If a third-party rental management company is engaged to manage or facilitate the rental of the Unit, the Owner must provide the Association with a fully executed, binding Rental Management Agreement. Not applicable if the Owner will self-manage the rental.

Owner Liability

- The Owner shall be solely responsible for all costs, refunds, credits, relocation expenses, administrative charges, damages, or other amounts arising from a Guest's arrival without required Association approval or otherwise in noncompliance with the Association's transient-rental requirements.
- The Owner is responsible for the conduct of the Owner Operator, Guests, occupants, and invitees, including any fines, costs, repairs, damages, replacement fees, or other charges resulting from that conduct.

Designated Contact and Approved Vendors

- The Owner must provide Designated Contact and Approved Vendor information, including 24/7 availability for guest service, maintenance, and housekeeping, and a reliable emergency contact for Unit-related emergencies and significant guest issues. The Owner may maintain this directly or through the Owner Operator.
- Prior to the commencement of any transient rental, the Owner must have on file with Management the name and contact information for a housekeeping person and an engineer/service company (each an Approved Vendor), which must be bonded, background checked, insured, and available 24 hours a day, seven days a week to respond to a Guest's requests for Unit service or housekeeping within the time period established from time to time by the Association. The Owner must provide appropriate bonds and insurance certificates.
- This information must be displayed at all times inside the Unit, provided to the Guest, and provided to Association Management.
- The Owner authorizes Management to provide the Designated Contact and Approved Vendor information to the Owner's Guests from time to time.

Compliance Verification

- As and to the extent required from time to time by Management, the Owner must submit Management's then-approved form of verification report confirming compliance with these procedures and providing such other information regarding the transient rental as Management requires, including confirmation of the requirements above (with the date of the last personal inspection of the Unit) and that the Designated Contact and Approved Vendor contact numbers have been disclosed to the Guest.
- If requested by Management, the Owner must provide evidence that the Owner has secured and maintains all licenses required for the operation of transient rentals, that all requirements for operation of the Unit as a transient rental have been met, and that the Owner has timely paid all City, County, State, and Federal taxes (other than income taxes) relating to the transient rental of the Unit.

Billing and Financial Responsibilities

- The Owner is responsible for paying all Association-related charges, including lease approval fees, access-card fees, parking fees, fines, damage charges, repair costs, and other properly assessed amounts. This remains the Owner's responsibility even if the Owner Operator or Guest has agreed to pay such charges.

- The Owner must establish AutoPay for all applicable maintenance assessments and lease approval fees payable to the association.
- The Owner must provide a refundable security deposit to the Association, which may be applied toward any incidental charges, costs, or damages to the Common Elements and/or any unpaid lease approval fee due to the Association.\

Owner Orientation and Acknowledgment

- The Owner must complete owner orientation and acknowledge compliance with the governing documents, rules, regulations, and Association policies.

OWNER ACKNOWLEDGMENT

I certify that the information and supporting documents submitted with this application are accurate and complete. I understand that rental approval is subject to the Association's governing documents, Transient Rental Procedures, applicable law, and the Association's review and approval.

By signing below, the Owner acknowledges that the Owner has read, understands, and agrees to the Guest Procedures, check-in/check-out authorization, alternate-accommodation provisions, indemnification, and release contained in this Transient Rental Application

UNIT OWNER — PRINT NAME	SIGNATURE	DATE